

3. Defendant Fails to Establish that the Default and Entry of Default Judgment Thereon Should be Set Aside as Void.

Lastly, to the extent the relief requested by Defendant is a request to vacate a judgment void for lack of service under Code of Civil Procedure section 473(d), the Court denies such relief.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397. A party seeking relief under the court's equitable powers must satisfy the elements of a “stringent three-pronged test”: (1) a satisfactory excuse for not presenting a defense, (2) a meritorious defense, and (3) diligence in seeking to set aside the default. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.

A motion to set aside a void default judgment may be filed at any time. See CJER Civ. Pro.—After Trial, § 1.82; see also *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 216.

For the reasons addressed at length above, the Court does not conclude that service of process on Defendant was void or somehow defective. Defendant has not rebutted the presumption of valid service and has not otherwise shown grounds for setting aside the Default Judgment under Section 473(d).

Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside Default is DENIED.
2. The Court shall issue the order after hearing.

***HEARING ON MOTION IN RE: FOR ATTORNEY FEES AND OF NONAPPEARANCE**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion for Attorneys’ Fees on October 23, 2025 (the “Attorneys’ Fees Motion”). The Attorneys’ Fees Motion was set for hearing on January 6, 2026. The motion is unopposed.

Background

A money judgment was entered against the defendant Melissa G Urbano (“Defendant”) in the principal amount of \$6,629.45, plus costs of \$420.00. See Judgment by Court entered August 13, 2025 (the “Judgment”). The Judgment was entered pursuant to a ruling in Plaintiff’s favor on a motion for judgment on the pleadings. See Order entered June 4, 2205.

Plaintiff now seeks an award of attorneys’ fees by this post-judgment motion. The Attorneys’ Fees Motion is supported by the Declaration of Pearse F. Early filed on October 23, 2025 (the “Supporting Declaration”).

Analysis

Attorneys’ fees, when authorized by contract, statute or law, are awardable as allowable costs of litigation pursuant to Code of Civil Procedure section 1032. Code Civ. Proc. §§ 1032 and 1033.5(a)(10); see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 16.43. In an action to enforce a contract that authorizes an award of attorneys’ fees to either party, the party prevailing on the contract is entitled to “reasonable” attorneys’ fees. Civ. Code § 1717. Contractual attorneys’ fees may be fixed by noticed motion. Rule 3.1702 of the California Rules of Court (“CRC”). In a limited jurisdiction civil case, such motion must generally be brought within 30 days after notice of entry of the judgment, unless a later deadline applies. CRC 3.1702(b)(1) (“A notice of motion to claim attorney’s fees for services up to and including the rendition of judgment in the trial court ... must be served and filed within the time for filing a notice of appeal ... under rules 8.822 and 8.823 in a limited civil case.”); see CRC 8.822 and 8.823; see also CJER Civ. Pro.—Trial, § 16.81.

Plaintiff’s motion is timely. No notice of entry of the Judgment was given by the clerk of the Court, so the deadline would be 90 days after the entry of judgment on August 13, 2025, i.e. November 11, 2025. See CRC 8.822(a)(1)(C) (deadline is “90 days after the entry of judgment” where no notice of entry of judgment is given). The Attorneys’ Fees Motion was filed and served October 23, 2025

The Supporting Declaration references the parties’ underlying contract which contains an attorneys’ fees clause. Supporting Declaration, ¶3 and **Exhibit B**. Paragraph 21 states, in pertinent part:

We may prevent further transactions and we may close your Account and other Wells Fargo Accounts. If your account is in default you agree to pay our collection

* * *

costs, attorney's fees, and court costs incurred in enforcing our rights under this agreement.

Consumer Credit Card Customer Agreement & Disclosure Statement, ¶21, Supporting Declaration, **Exhibit B**.

The Court finds that the parties' contract contained an attorneys' fees clause, entitling Plaintiff to recover attorneys' fees as the prevailing party in this action.

A party seeking an award of attorneys' fees as a prevailing party must present evidence of the time spent and the hourly rate of each attorney. *Copenbarger v. Morris Cerullo World Evangelism, Inc.* (2018) 29 Cal.App.5th 1, 14 ("*Copenbarger*"); see CJER Civ. Pro.—Trial, § 16.82. This party has the burden to show the reasonableness of the attorneys' fees sought. *Copenbarger, supra*, 29 Cal.App.5th at 14 (party seeking fees bears the burden of showing that the requested fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount).

The evidence proffered by Plaintiff fails to carry its burden of proof as to the reasonableness of the attorneys' fees sought.

The Supporting Declaration contains only a cursory reference to Plaintiff's counsel's hourly rate and a total figure of \$800:

4. Plaintiff's counsel charges a reasonable hourly rate of \$200.00 per hour which is customary and very reasonable among attorneys practicing law in Southern California. Thus, Four multiplied by \$200.00 equals \$800.00, which Plaintiff requests as reasonable attorney fees

See Supporting Declaration, ¶4.

The reference to "Four" presumably refers to four (4) hours of attorney work incurred in connection with the litigation, although the declaration does not actually state as much. Even granting a liberal reading of the Supporting Declaration, however, the declaration does not even purport to describe the nature and extent of such legal services, even in broad terms. Nor does the declaration attach any billing statements, invoices or other time summaries, as is typical in such motions.

The Court cannot and does not conclude that the claimed attorneys' fees were reasonable and necessary to this litigation given the paucity of evidence.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees is DENIED.
2. The Court shall enter the order after hearing.